CIP VIII PRIVATE EQUITY BACKED NOTES LTD

PURCHASE AGREEMENT

_____, 2020

CIP VIII Private Equity Backed Notes Ltd
c/o Walkers Fiduciary Limited
Cayman Corporate Centre
27 Hospital Road, George Town
Grand Cayman KY1-9008
Cayman Islands

Ladies and Gentlemen:

1. Purchase. Reference is hereby made to (i) the Indenture and Security Agreement (the "Indenture"), to be dated on or after the date hereof, among CIP VIII Private Equity Backed Notes Ltd, an exempted company with limited liability incorporated under the laws of the Cayman Islands (the "Issuer"), and The Bank Of New York Mellon Trust Company, National Association, as Collateral Trustee (the "Collateral Trustee"), (ii) the second preliminary offering memorandum dated September __, 2020 (the "Preliminary Offering Memorandum") and (iii) the final Offering Memorandum of the Issuer (the "Offering Memorandum"). Capitalized terms not defined in this purchase agreement (this "Purchase Agreement") shall have the meanings ascribed thereto in the Offering Memorandum or the Indenture.

This Purchase Agreement relates to the Notes identified on the signature page hereto (the "Purchased Securities") which are being acquired by the purchaser identified on the signature page hereto (the "Investor") in the aggregate principal amount set forth on such signature page (such amount, the "Commitment Amount"). The Investor hereby commits to acquire the Purchased Securities described on the signature page hereto to be issued pursuant to the Indenture.

The Purchased Securities will be issued on a when, as and if basis. None of the Issuer, the Initial Purchaser, the Manager, their respective affiliates nor any other person will have any liability to the Investor for the failure of any or all of the Notes (including the Purchased Securities) to be issued or for any failure or inability of the Issuer to deliver the Purchased Securities or the full Commitment Amount thereof to the Investor.

If this Purchase Agreement is delivered prior to the date that the Investor receives the Offering Memorandum relating to the Notes, this Purchase Agreement is being delivered in escrow and will be released upon the earlier of (x) the date on which it is released in writing by the Investor (including via e-mail) following receipt of the Offering Memorandum and (y) the settlement of the Purchased Securities to the Investor on the Closing Date.

In connection with such purchase, and in respect of such Purchased Securities, the Investor does hereby certify that the Purchased Securities are being purchased in accordance with the

transfer restrictions set forth in the Offering Memorandum. In addition, the Investor hereby represents, warrants and covenants for the benefit of the Issuer, the Collateral Trustee, the Administrator, the Manager, the Initial Purchaser and their respective counsel that the Investor is:

(a) (PLEASE CHECK ONLY ONE)

_____ a person that is both (x) not a "U.S. person" as defined in Regulation S under the Securities Act and is acquiring the Purchased Securities in an offshore transaction (as defined in Regulation S) in reliance on the exemption from registration under the Securities Act provided by Regulation S and (y) an "Accredited Investor" as such term is defined in Rule 501(a) of Regulation D promulgated under the Securities Act; or

_____ both (x) a "qualified institutional buyer" as defined in Rule 144A under the United States Securities Act of 1933, as amended (the "Securities Act") (a "Qualified Institutional Buyer") that is not a broker dealer which owns and invests on a discretionary basis less than U.S.$25,000,000 in securities of issuers that are not affiliated persons of the dealer and is not a plan referred to in paragraph (a)(1)(i)(D) or (a)(1)(i)(E) of Rule 144A under the Securities Act or a trust fund referred to in paragraph (a)(1)(i)(F) of Rule 144A under the Securities Act that holds the assets of such a plan, if investment decisions with respect to the plan are made by beneficiaries of the plan and (y) a "qualified purchaser" for purposes of Section 3(c)(7) of the Investment Company Act of 1940, as amended (the "Investment Company Act"), including an entity owned exclusively by "qualified purchasers" (a "Qualified Purchaser"); and

(b) acquiring the Purchased Securities for its own account (and not for the account of any other Person) in a minimum denomination of U.S.$250,000 and in integral multiples of U.S.$1.00 in excess thereof.

2. Representations, Warranties and Agreements by the Investor. To induce the Issuer to accept this commitment to purchase, the Investor hereby represents, warrants and covenants that:

(a) it understands that the Purchased Securities are being offered in a transaction not involving any public offering in the United States or elsewhere within the meaning of the Securities Act or the Investment Company Act, that the Purchased Securities have not been and will not be registered under the Securities Act and that if in the future it decides to offer, resell, pledge or otherwise transfer any of the Purchased Securities, such Purchased Securities may not be offered, resold, pledged or otherwise transferred except pursuant to an exemption from registration. Notwithstanding the availability of an exemption from the registration requirements under the Securities Act, the Purchased Securities may be offered, resold, pledged or otherwise transferred only (A)(i) to the Issuer or (ii) to a person that is (x) (1) not a U.S. Person and is acquiring the Purchased Securities in an offshore transaction in reliance on the exemption from registration provided by Regulation S and (2) an "Accredited Investor" as such term is defined in Rule 501(a) of Regulation D promulgated under the Securities Act or (y) a Qualified Institutional Buyer that is also a Qualified Purchaser, acquiring the Purchased Securities for its own account or the account of a person that is a Qualified Institutional Buyer that is also a Qualified Purchaser, in a transaction meeting the requirements of Rule 144A and (B) in accordance with any applicable securities laws of any

State of the United States and other jurisdictions. In connection with any transfer of the Purchased Securities pursuant to clause (A) above, it will furnish to the Issuer, prior to such transfer, such certifications, legal opinions or other information as the Issuer may reasonably require to confirm that such transfer is being made pursuant to an exemption from, or in a transaction not subject to, the registration requirements of the Securities Act or that such transfer will not require the Issuer to register as an investment company under the Investment Company Act;

(b) it is not a broker-dealer that owns and invests on a discretionary basis less than twenty-five million dollars ($25,000,000) in securities of issuers that are not its affiliated persons;

(c) it is not a plan referred to in paragraph (a)(1)(i)(d) or (a)(1)(i)(e) of Rule 144A, or a trust fund referred to in paragraph (a)(1)(i)(f) of Rule 144A that holds the assets of such a plan, unless investment decisions with respect to the plan are made solely by the fiduciary, trustee or sponsor of such plan;

(d) it was not formed, reformed, recapitalized or operated for the purpose of investing in the Issuer, and (i) it is not a (a) partnership, (b) common trust fund, (c) special trust, pension fund or retirement plan or (d) other entity in which the partners, beneficiaries or participants, as the case may be, may designate the particular investments to be made or the allocation thereof and (ii) less than forty percent (40%) of its total assets consist of investments in the Issuer;

(e) it and each account for which it is purchasing or otherwise acquiring the Purchased Securities will purchase, hold or transfer at least the Minimum Denomination of the Purchased Securities;

(f) it understands that the Purchased Securities will, unless otherwise agreed by the Issuer and the holder thereof, bear a legend substantially to the effect set forth under "*Notice to Investors and Transfer Restrictions—Legends*" in the Offering Memorandum;

(g) if it is an investment company excepted from the Investment Company Act pursuant to Section 3(c)(1) or Section 3(c)(7) thereof and was formed on or before April 30, 1996, it has received the consent of those of its beneficial owners who acquired their interests on or before April 30, 1996 with respect to its treatment as a Qualified Purchaser in the manner required by Section 2(a)(51)(C) of the Investment Company Act and rules thereunder;

(h) it understands that the Issuer may receive a list of participants holding positions in the Purchased Securities from one or more book entry depositaries;

(i) unless it is acquiring such Purchased Securities or interest therein on the Closing Date and has indicated otherwise in the attached ERISA Certificate, (1)(x) it is not, and is not acting on behalf of (and for so long as it holds such Purchased Securities or interest therein, will not be and will not be acting on behalf of) a Benefit Plan Investor or a Controlling Person and (y) if it is a governmental, church, non-U.S. or other plan, (I) it is not, and for so long as it holds such Purchased Securities or interest therein will not be, subject to any Similar Law and (II) its acquisition, holding and disposition of such Purchased Securities or interest therein will not

constitute or result in a violation of any applicable Other Plan Law, and (2) it agrees to certain transfer restrictions regarding such Purchased Securities or interest therein;

(j) if it is a Benefit Plan Investor, (1) none of the Transaction Parties has provided any investment recommendation or investment advice to the Benefit Plan Investor or Plan Fiduciary, on which either the Benefit Plan Investor or Plan Fiduciary has relied in connection with the decision to invest in the Purchased Securities, (2) the Transaction Parties are not otherwise acting as a "fiduciary", as that term is defined in Section 3(21) of ERISA or Section 4975(e)(3) of the Code, to the Benefit Plan Investor or Plan Fiduciary in connection with the Benefit Plan Investor's investment in the Purchased Securities and (3) the Plan Fiduciary is exercising its own independent judgment in evaluating the transaction;

(k) in connection with the purchase of such Purchased Securities: (A) none of the Issuer, the Manager, the Collateral Trustee, the Collateral Administrator, the Loan Agent, the Initial Purchaser, the Administrator or any of their respective Affiliates is acting as a fiduciary or financial or investment advisor for it; (B) it is not relying (for purposes of making any investment decision or otherwise) upon any advice, counsel or representations (whether written or oral) of the Issuer, the Manager, the Collateral Trustee, the Collateral Administrator, the Loan Agent, the Initial Purchaser, the Administrator or any of their respective Affiliates other than any statements in the Offering Memorandum, and it has read and understands the Offering Memorandum; (C) it has consulted with its own legal, regulatory, tax, business, investment, financial and accounting advisors to the extent it has deemed necessary and has made its own investment decisions (including decisions regarding the suitability of any transaction pursuant to the Indenture) based upon its own judgment and upon any advice from such advisors as it has deemed necessary and not upon any view expressed by the Issuer, the Collateral Trustee, the Collateral Administrator, the Manager, the Loan Agent, the Initial Purchaser, the Administrator or any of their respective Affiliates; (D) it is a sophisticated investor and is purchasing the Purchased Securities with a full understanding of all of the terms, conditions and risks thereof, and is capable of and willing to assume those risks; (E) it understands that the Purchased Securities are illiquid and it is prepared to hold the Purchased Securities until their Maturity; and (F) it agrees that it shall not hold any Purchased Securities for the benefit of any other person, that it shall at all times be the sole beneficial owner thereof for purposes of the Investment Company Act and all other purposes and that it shall not sell participation interests in the Purchased Securities or enter into any other arrangement pursuant to which any other person shall be entitled to a beneficial interest in the distributions on the Purchased Securities; *provided* that none of the representations in clauses (A) through (C) above is made with respect to the Manager by any Affiliate of the Manager or any account for which the Manager or an Affiliate thereof acts as investment adviser;

(l) each Investor who purchases or otherwise becomes the Holder of Purchased Securities will hold and transfer at least the Minimum Denomination of such Purchased Securities;

(m) it agrees that it will not, prior to the date which is one year and one (1) day (or if longer, any applicable preference period *plus* one (1) day) after the payment in full of all obligations under the Liquidity Loan Facility and all Debt (and any other debt obligations of the Issuer that have been rated upon issuance by any rating agency at the request of the Issuer), institute against, or join any other Person in instituting against, the Issuer any

bankruptcy, winding up, reorganization, arrangement, insolvency, moratorium or liquidation Proceedings, or other Proceedings under Cayman Islands, U.S. federal or state bankruptcy or similar laws. It agrees and acknowledges to be subject to the Bankruptcy Subordination Agreement;

(n) it understands and agrees that such Purchased Securities are limited recourse obligations of the Issuer from time to time and at any time, payable solely from proceeds of the Assets available at such time in accordance with the Priority of Payments and following realization of the Assets and application of the proceeds thereof in accordance with the Indenture and the Credit Agreement, all obligations of and any claims against the Issuer thereunder or in connection therewith after such realization will be extinguished and will not thereafter revive. No recourse shall be had against any officer, director, employee, shareholder or incorporator of the Issuer, the Manager or their respective Affiliates, successors or assigns for any amounts payable under the Liquidity Loan Facility, the Debt, the Indenture or the Credit Agreement;

(o) it agrees and acknowledges that (1)(A) the express terms of the Indenture govern the rights of the Holders of the Purchased Securities to direct the commencement of any suit in equity, action at law or other judicial or administrative proceeding (a "Proceeding") against any Person; (B) the Indenture contains limitations on the rights of the Holders of the Purchased Securities to direct the commencement of any such Proceeding; and (C) it shall comply with such express terms if it seeks to direct the commencement of any such Proceeding, (2) there are no implied rights under the Indenture to direct the commencement of any such Proceeding and (3) notwithstanding any other provision herein or any provision of the Purchased Securities or of any other agreement, the Issuer shall be under no duty or obligation of any kind to the Holders, or any of them, to institute any legal or other proceedings of any kind, against any person or entity, including, without limitation, the Collateral Trustee, the Collateral Administrator or the Manager;

(p) it understands that (A) the Collateral Trustee will provide to the Issuer and the Manager upon reasonable request all reasonably available information in the possession of the Collateral Trustee, as applicable, in connection with regulatory matters, including any information that is necessary or advisable in order for the Issuer or the Manager (or its parent or Affiliates) to comply with regulatory requirements, (B) the registrar or the Collateral Trustee will provide, at the Issuer's expense, to the Issuer and the Manager, upon written request, a list of Holders as reflected in the register, (C) the Collateral Trustee will obtain and provide, at the Issuer's expense, to the Issuer and the Manager upon written request a list of participants in DTC holding positions in such Purchased Securities, (D) the Collateral Trustee and the registrar will provide to the Issuer, the Manager or any agent thereof, upon written request at any time, any information regarding the holders of the Purchased Securities and payments on the Purchased Securities that is reasonably available to the Collateral Trustee or the registrar, as the case may be, by reason of its acting in such capacity and may be necessary for compliance with FATCA and (E) subject to the duties and responsibilities of the Collateral Trustee set forth under the Indenture, the Collateral Trustee will have no liability for any such disclosure under (A), (B), (C) or (D) or the accuracy thereof;

(q) it understands that the Issuer may impose additional transfer restrictions on the Purchased Securities to comply with the Uniting and Strengthening America by Providing Appropriate Tools Required to Intercept and Obstruct Terrorism Act of 2001 and other

similar laws or regulations, including, without limitation, requiring each Investor or transferee of a Purchased Security to make representations to the Issuer in connection with such compliance;

(r) it is not a person with whom dealings are restricted or prohibited under any law relating to economic sanctions or anti-money laundering of the United States, the European Union, Switzerland or any other applicable jurisdiction ("AML and Sanctions Laws"), and such Person's or transferee's purchase of such Purchased Securities will not result in the violation of any AML and Sanctions Laws by any party, whether as a result of the identity of such Person or transferee or its beneficial owners, their source of funds or otherwise;

(s) it acknowledges receipt of the Issuer's privacy notice (which can be accessed at https://www.walkersglobal.com/external/SPVDPNotice.pdf and provides information on the Issuer's use of personal data in accordance with the Cayman Islands Data Protection Law, 2017 and, in respect of any EU data subjects, the EU General Data Protection Regulation) and, if applicable, agrees to promptly provide the privacy notice (or any updated version thereof as may be provided from time to time) to each individual (such as any individual directors, shareholders, beneficial owners, authorized signatories, trustees or others) whose personal data it provides to the Issuer or any of its affiliates or delegates including, but not limited to, Walkers Fiduciary Limited in its capacity as Administrator;

(t) it, by acceptance of the Purchased Securities, will be deemed to agree to provide the Issuer or its agents with such information and documentation that may be required for the Issuer to achieve AML Compliance and to update or replace such information or documentation as necessary;

(u) it agrees and acknowledges that any purported transfer of the Purchased Securities (or any beneficial or economic interests herein) that is in breach, at the time made, of any transfer restrictions applicable to the Purchased Securities will be null and void *ab initio*, and will not operate to transfer any rights to the transferee, notwithstanding any instructions to the contrary to the Issuer, its transfer agent or any other intermediary. Each Investor of such Purchased Securities (or any beneficial or economic interests herein) agrees that in the event that the Issuer or its transfer agent determines in good faith that it is in breach, at the time given, of any of the representations, warranties, acknowledgements or agreements set forth above, the Issuer shall consider the acquisition of such Purchased Securities (or any beneficial or economic interests herein) void, of no force and effect and the purported transfer will not, at the discretion of the Issuer, operate to transfer any rights to the transferee notwithstanding any instructions to the contrary to the Issuer, the transfer agent or any other intermediary. In addition, the Issuer or the transfer agent may require such acquirer of Purchased Securities (or any beneficial or economic interests therein) to transfer such Purchased Securities (or beneficial or economic interests therein) to a transferee acceptable to the Issuer who is able to and who does make all of the representations, warranties, acknowledgements and agreements set forth above. Pending such transfer, the purchaser of Purchased Securities (or any beneficial or economic interests therein) will be deemed not to be the holder of such Purchased Securities (or any beneficial or economic interests therein) for any purpose, including but not limited to distributions and receipt of interest and redemption payments, and it will be deemed to have no interest whatsoever in the Purchased

Securities (or any beneficial or economic interests therein) except as otherwise required to redeem or sell its interest therein as described in this paragraph;

(v) it will treat the Secured Debt as indebtedness and will treat the Subordinated Notes as equity for all U.S. federal, state and local income tax purposes and will take no action inconsistent with such treatment unless otherwise required by an applicable taxing authority;

(w) it will timely furnish the Issuer or the Collateral Trustee or their respective agents with any tax forms or certifications (including, without limitation, IRS Form W-9, IRS Form W-8, or any successor to such IRS form) that the Issuer, the Collateral Trustee or their respective agents reasonably request in order to (A) make payments to it without, or at a reduced rate of, withholding, (B) qualify for a reduced rate of withholding in any jurisdiction from or through which they receive payments and (C) satisfy reporting and other obligations under the Code, Treasury regulations or any other applicable law or regulation, and will update or replace such tax forms or certifications in accordance with their terms or subsequent amendments. It acknowledges that the failure to provide, update or replace any such tax forms or certifications may result in the imposition of withholding or back-up withholding on payments to it or to the Issuer. Amounts withheld by the Issuer or its agents that are, in their sole judgment, required to be withheld pursuant to applicable tax laws will be treated as having been paid to it by the Issuer;

(x) it will provide the Issuer or its agents with any correct, complete and accurate information and documentation that may be required for the Issuer to comply with FATCA, the Cayman FATCA Legislation, and the CRS and to prevent the imposition of U.S. federal withholding tax under FATCA on payments to or for the benefit of the Issuer. In the event it fails to provide such information or documentation for the purposes of FATCA, or to the extent that its ownership of Purchased Securities would otherwise cause the Issuer to be subject to any tax under FATCA, (A) the Issuer (and any agent acting on its behalf) is authorized to withhold amounts otherwise distributable to it as compensation for any tax imposed under FATCA as a result of such failure or its ownership, and (B) to the extent necessary to avoid an adverse effect on the Issuer as a result of such failure or its ownership, the Issuer will have the right to compel it to sell its Purchased Securities and, if it does not sell its Purchased Securities within 10 Business Days after notice from the Issuer or its agents, the Issuer will have the right to sell such Purchased Securities at a public or private sale called and conducted in any manner permitted by law, and to remit the net proceeds of such sale (taking into account any taxes incurred by the Issuer in connection with such sale) to it as payment in full for such Purchased Securities. The Issuer may also assign each such Purchased Security a separate securities identifier in the Issuer's sole discretion. It agrees that the Issuer and its agents may (1) provide any information and documentation concerning its investment in its Purchased Securities to the Cayman Islands Tax Information Authority, the U.S. Internal Revenue Service and any other relevant tax authority and (2) take such other steps as they deem necessary or helpful to ensure that the Issuer complies with FATCA, the Cayman FATCA Legislation, and the CRS;

(y) if it owns more than 50% of the Subordinated Notes by value or is otherwise treated as a member of the "expanded affiliated group" of the Issuer (as defined in Treasury regulations section 1.1471-5(i) (or any successor provision)), it will (A) confirm that any member of such expanded affiliated group (assuming that the Issuer is a "registered deemed-

compliant FFI" within the meaning of Treasury regulations section 1.1471-1(b)(111) (or any successor provision)) that is treated as a "foreign financial institution" within the meaning of Section 1471(d)(4) of the Code and any Treasury regulations promulgated thereunder is either a "participating FFI", a "deemed-compliant FFI" or an "exempt beneficial owner" within the meaning of Treasury regulations section 1.1471-4(e) (or any successor provision), and (B) promptly notify the Issuer in the event that any member of such expanded affiliated group that is treated as a "foreign financial institution" within the meaning of Section 1471(d)(4) of the Code and any Treasury regulations promulgated thereunder is not either a "participating FFI", a "deemed-compliant FFI" or an "exempt beneficial owner" within the meaning of Treasury regulations section 1.1471-4(e) (or any successor provision), in each case except to the extent that the Issuer or its agents have provided it with an express waiver of this requirement;

(z) it has such knowledge and experience in financial and business matters as to be capable of evaluating the merits and risks of its investment in the Purchased Securities, and it is able to bear the economic risk of its investment;

(aa) it understands that an investment in the Purchased Securities involves certain risks, including the risk of loss of all or a substantial part of its investment. It has had access to such financial and other information concerning any of the Issuer, the Manager, the Collateral Trustee, the Collateral Administrator, the Loan Agent or the Initial Purchaser, the Purchased Securities and the Assets as it deemed necessary or appropriate in order to make an informed investment decision with respect to its purchase of Purchased Securities;

(bb) it is not a Coller Competitor;

(cc) it is not a member of the public in the Cayman Islands;

(dd) it acknowledges and agrees that it has completed its own investigation in relation to the Fund and the Fund Portfolio Investments;

(ee) it is aware that, except as otherwise provided in the Indenture, any Purchased Securities being sold to it in reliance on Regulation S will be represented by one or more Regulation S Global Notes and that in each case beneficial interests therein may be held only through DTC for the respective accounts of Euroclear or Clearstream;

(ff) it will notify any subsequent purchasers of the Purchased Securities from it of the transfer restrictions applicable to the Purchased Securities;

(gg) it further represents, warrants and agrees that each of the representations made by it on the investor questionnaire set forth in Annex A hereto (the "Investor Questionnaire"), the ERISA certificate set forth in Annex B hereto (the "ERISA Certificate") and the preliminary investment questionnaire set forth in Annex C hereto (the "Preliminary Investment Questionnaire") are true, complete, and correct and it will be bound by the terms thereof;

(hh) it has carried out transactions, in significant size, on the relevant market at an average frequency of 10 per quarter over the previous four quarters;

(ii) the size of its financial instrument portfolio, defined as including cash deposits and financial instruments, exceeds EUR 500,000; and

(jj) it acknowledges that the Issuer, the Manager, the Initial Purchaser and others will rely upon the truth and accuracy of the foregoing acknowledgments, representations and agreements and agrees that if any of the acknowledgments, representations or agreements deemed to have been made by its purchase of the Purchased Securities are no longer accurate, it shall promptly notify the Issuer. If it is acquiring the Purchased Securities as a fiduciary or agent for one or more investor accounts, it represents that it has sole investment discretion with respect to each such account and it has full power to make the foregoing acknowledgments, representations and agreements on behalf of each account.

3. Tax Information. The Investor certifies under penalties of perjury that (i) if the Investor is acquiring any Purchased Securities in the form of Certificated Notes, the Investor's name, taxpayer identification number and address provided in the Investor Questionnaire are correct and (ii) the information contained in the applicable IRS Form W-8 (including appropriate attachments), IRS Form W-9, any successors to such forms, or any other tax-related form submitted to the Issuer is correct (which certification will be deemed to be repeated on any date on which any tax form is delivered to the Issuer after the date hereof). The Investor agrees in a timely manner to complete, execute, arrange for any required certification of (in each case accurately and in a manner reasonably satisfactory to the Issuer), and deliver to the Issuer or such governmental or taxing authority as the Issuer directs, any form, document or certificate that may be required or reasonably requested by the Issuer. The Investor further agrees to promptly inform the Issuer of any change in any such information previously provided to the Issuer and to execute a new form or other document with the correct information.

4. Further Advice and Assurances. All information which the Investor has provided to the Issuer or any other Person in connection with the transactions contemplated by this Purchase Agreement, including the information in the attached Investor Questionnaire if the Investor is acquiring any Purchased Securities in the form of Certificated Notes, is correct and complete as of the date hereof, and the Investor agrees to notify the Issuer immediately if any representation, warranty or information contained in this Purchase Agreement, including in the attached Investor Questionnaire, becomes untrue. The Investor agrees to provide such information and execute and deliver such documents as the Issuer may reasonably request from time to time to verify the accuracy of the Investor's representations and warranties herein or to comply with any law or regulation to which the Issuer may be subject.

5. Delivery of Offering Memorandum. The Investor understands and agrees that, on or prior to the Closing Date, the Investor shall be provided with the Offering Memorandum, the Investor shall have received, and shall have had an adequate opportunity to review the contents of, the Offering Memorandum prior to the funding of this purchase, and such funding by such Investor shall be deemed to be confirmation by such Investor that it has received, reviewed and approved of the Offering Memorandum. The Investor understands and agrees that the information contained in the Offering Memorandum is current as of the date thereof, and none of the Issuer, the Manager, the Initial Purchaser and/or any of their respective Affiliates is obligated to update such information for the benefit of any Investor during the term of the Purchased Securities.

6. Payment of Purchase Price. On the Closing Date (and in reliance upon the representations, warranties and agreements of the Investor contained or incorporated by reference

herein), the Issuer will cause Purchased Securities in an aggregate principal amount equal to the amount set forth on the signature page hereof to be transferred in accordance with the delivery instructions provided by the Investor, but only against delivery by the Investor of the amount of the Investor's purchase price hereunder by wire transfer not later than one Business Day after September __, 2020 (the "Pricing Date") to the account specified on the Investor Questionnaire or as otherwise designated prior to such date by the Issuer. If the Investor's purchase is rejected in whole or in part, the amount rejected shall be returned promptly by wire transfer to an account designated by the Investor. The Investor agrees to provide to the Issuer and its agents any additional information reasonably requested for purposes of the receipt or the return of any such funds.

7. Indemnity. The Investor understands that the information provided herein, in the Investor Questionnaire, in the ERISA Certificate and in the Preliminary Investment Questionnaire will be relied upon by the Issuer, the Manager, and the Initial Purchaser and their respective counsel for the purpose of determining the eligibility of the Investor to purchase the Purchased Securities. The Investor agrees to provide, if requested, any additional information that may reasonably be required to determine the eligibility of the Investor to purchase the Purchased Securities. The Investor agrees to indemnify and hold harmless the Issuer, the Collateral Trustee, the Initial Purchaser, the Manager, the Administrator and each of their respective Affiliates and agents from and against any cost, loss, damage or liability due to or arising out of a breach of any representation, warranty or agreement of the Investor contained in this Purchase Agreement (including, for the avoidance of doubt, the Investor Questionnaire (if applicable), the ERISA Certificate and the Preliminary Investment Questionnaire (if applicable)) or in any other document provided by the Investor to the Issuer in connection with the Investor's investment in Purchased Securities. Notwithstanding any provision of this Purchase Agreement, the Investor does not waive any rights granted to it under applicable securities laws.

8. Consent to Jurisdiction; Service of Process. The Investor hereby irrevocably submits to the exclusive jurisdiction of any U.S. federal or New York State court in the Borough of Manhattan, City of New York, and any appellate court from any of such courts, in any action arising out of or in relation to this Purchase Agreement, the Purchased Securities, the Offering Memorandum and the transactions contemplated hereby or thereby. The Investor agrees that all claims and proceedings in respect of any such action may be heard and determined in any such U.S. federal or New York State court and, to the fullest extent permitted by applicable law, waives the defense of an inconvenient forum. The Investor agrees that a final judgment in any such action or proceeding shall be conclusive and may be enforced in other jurisdictions by suit on the judgment or in any other manner provided by law. The Investor irrevocably consents to service of process by personal delivery, certified mail, postage prepaid, or overnight courier, to its address specified on the Investor Questionnaire or as otherwise provided to the Issuer, the Collateral Trustee or the Registrar by the Investor.

9. Waiver of Jury Trial. THE INVESTOR HEREBY IRREVOCABLY WAIVES, TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, ANY AND ALL RIGHT TO TRIAL BY JURY (BUT NO OTHER JUDICIAL REMEDIES) IN ANY LEGAL PROCEEDING ARISING OUT OF OR RELATING TO THIS PURCHASE AGREEMENT, THE PURCHASED SECURITIES, THE OFFERING MEMORANDUM AND THE TRANSACTIONS CONTEMPLATED HEREBY OR THEREBY.

10. Governing Law. THIS PURCHASE AGREEMENT AND ANY CLAIM, CONTROVERSY OR DISPUTE ARISING UNDER OR RELATED THERETO, THE

RELATIONSHIP OF THE PARTIES, AND/OR THE INTERPRETATION AND ENFORCEMENT OF THE RIGHTS AND DUTIES OF THE PARTIES SHALL BE CONSTRUED IN ACCORDANCE WITH AND GOVERNED IN ALL RESPECTS (WHETHER IN CONTRACT, TORT OR OTHERWISE) BY THE LAWS OF THE STATE OF NEW YORK WITHOUT REGARD TO CONFLICT OF LAWS.

11. Limited Recourse. The Purchased Securities are limited recourse obligations of the Issuer from time to time and at any time, payable solely from amounts received in respect of the Assets available at such time and pledged by the Issuer under the Indenture. If amounts received in respect of such Assets are insufficient to make payments on the Purchased Securities in accordance with the Priority of Payments, no other assets will be available for payment of the deficiency and, following liquidation of all of such Assets, the obligation of the Issuer to pay such deficiency will be extinguished and will not thereafter revive. The Investor understands that the Purchased Securities are not deposits or other obligations of the Collateral Trustee or its affiliates or subsidiaries or any other financial institution, are not guaranteed by the Collateral Trustee or its affiliates or subsidiaries or any other financial institution, are not insured by the Federal Deposit Insurance Corporation or any other governmental agency, and are subject to investment risk, including possible loss of principal amount invested.

12. Benefit of Agreement; Binding Effect; No Assignment. The Investor and the Issuer hereby agree that, except as otherwise provided herein, this Purchase Agreement shall be binding upon the parties hereto and inure to the benefit of the parties hereto and the Issuer and their respective agents, successors, heirs, executors, legal representatives and transferees. This Purchase Agreement may not be assigned by the Investor without the prior written consent of the Issuer.

13. Non-Petition. Notwithstanding any other provision of this Purchase Agreement, the Investor agrees not to institute against, or join any other Person in instituting against, the Issuer, or any Issuer Subsidiary any bankruptcy, reorganization, arrangement, insolvency, winding up, moratorium or liquidation proceedings, or other proceedings under Cayman Islands bankruptcy laws, United States federal or state bankruptcy laws, or similar laws until at least one year (or, if longer, the applicable preference period then in effect) plus one day after the payment in full of all obligations under the Liquidity Loan Facility and all Debt (and any other debt obligations of the Issuer that have been rated upon issuance by any rating agency at the request of the Issuer).

14. Indenture Provisions. By its purchase of the Purchased Securities, the Investor shall be deemed to have agreed to the provisions set forth in the Indenture.

15. Execution by Facsimile and Counterparts. This Purchase Agreement may be executed in any number of counterparts (including counterparts by facsimile. PDF or other electronic means) and all such counterparts taken together will be deemed to constitute one and the same document.

[Remainder of Page Intentionally Left Blank]

IN WITNESS WHEREOF, the undersigned Investor has executed this Purchase Agreement on the date set forth below.

		Form of Purchased Securities						
		Global Notes		Certificated Notes				
Class of Purchased Securities	**Minimum Denominations (U.S.$)**	**Regulation S**	**Rule 144A**	**Regulation S**	**Rule 144A**	**Aggregate Principal Amount**	**Aggregate Purchase Price**	**Aggregate Proceeds**
Class I Subordinated	$250,000	□	□	□	□	U.S.$_____ **X**	____ %	= U.S.$_____
Class II Subordinated	$250,000	□	□	□	□	U.S.$_____ **X**	____ %	= U.S.$_____

_____
(Name of Investor)

By: _____
(Signature)

_____
(Print Name and Title)

Date: _____

IF YOU ARE PURCHASING A CERTIFICATED NOTE, YOU MUST FILL OUT ANNEX A.

EACH INVESTOR MUST FILL OUT ANNEX B.

IF YOU ARE PURCHASING A PURCHASED SECURITY IN RELIANCE ON THE EXEMPTION FROM REGISTRATION UNDER REGULATION S, YOU MUST FILL OUT ANNEX C.

The Issuer by signing below hereby accepts the above application for purchase of the Purchased Securities.

CIP VIII PRIVATE EQUITY BACKED NOTES LTD, as Issuer

By: _____
Name
Title:

ANNEX A
INVESTOR QUESTIONNAIRE

1. Investor Information.

A. Address for Notices: _____

_____

_____

_____

B. Telephone Number: _____

C. Fax Number: _____

D. Email Address: _____

E. U.S. Tax ID or Social Security #: _____

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2. Wiring and Delivery Information for Certificated Notes.

A. Incoming Wire Payment Instructions:

Bank Name: Bank of New York Mellon
ABA: 021-000-018
Acct Number: 9156878400
Acct Name: CIP VIII PEBN Subscribers Escrow AC
Ref: Attn: Maritza Hernandez 713-483-6332 (with details of what the wire pertains to)

☐ By checking this box, the Investor confirms it will fund its purchase for the Certificated Notes not later than one Business Day after September __, 2020 (the "Pricing Date").

B. Wire Receipt Instructions:
(for future distributions on the Certificated Notes)

BANK NAME: _____

BANK ADDRESS: _____

ABA OR CHIPS #: _____

ACCOUNT NAME: _____

ACCOUNT #: _____

C. Delivery Address:
(for delivery of any certificate representing Certificated Notes)

_____

_____

_____

_____

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3. Tax Information. The Investor is either ***(please check one)***:

☐ a United States person within the meaning of Section 7701(a)(30) of the Code, and a properly completed and signed Internal Revenue Service Form W-9 (or applicable successor form) is attached hereto or will be sent to the Collateral Trustee within 30 days; or

☐ not a United States person within the meaning of Section 7701(a)(30) of the Code, and a properly completed and signed Internal Revenue Service Form W-8 (or applicable successor form) is attached hereto or will be sent to the Collateral Trustee within 30 days, together with all appropriate attachments.

4. Supplemental Data for Entities.

Legal form of entity (corporation, partnership, etc.): _____

Jurisdiction of organization: _____

Primary place of business: _____

5. Cayman Self-Certification Form.

You must provide a properly completed and executed "Entity Self-Certification Form" or "Individual Self-Certification Form" (in the forms published by the Cayman Islands Department of International Tax Cooperation, which forms can be obtained at https://www.ditc.ky/crs/crs-legislation-resources/).

ANNEX B
ERISA CERTIFICATE

The purpose of this ERISA Certificate (this "Certificate") is, among other things, to (i) endeavor to ensure that less than 25% of the value of the Class I Subordinated Notes and the Class II Subordinated Notes issued by CIP VIII Private Equity Backed Notes Ltd (the "Issuer") is held by (a) employee benefit plans that are subject to the fiduciary responsibility provisions of Title I of the Employee Retirement Income Security Act of 1974, as amended ("ERISA"), (b) plans that are subject to Section 4975 of the Internal Revenue Code of 1986, as amended (the "Code") and (c) entities whose underlying assets include "plan assets" by reason of any such employee benefit plans' or plans' investment in the entity (collectively, "Benefit Plan Investors"), the percentage as calculated under the U.S. Department of Labor regulation at 29 C.F.R. § 2510.3-101, as modified by Section 3(42) of ERISA (the "Plan Asset Regulation" and the "25% Limitation"), (ii) obtain from you certain representations and agreements and (iii) provide you with certain related information with respect to your acquisition, holding or disposition of the Purchased Securities. **By signing this Certificate, you agree to be bound by its terms.**

Please be aware that the information contained in this Certificate is not intended to constitute advice and the examples given below are not intended to be, and are not, comprehensive. You should contact your own counsel if you have any questions in completing this Certificate. Capitalized terms not defined in this Certificate shall have the meanings ascribed to them in the Indenture.

Please review the information in this Certificate and check the box(es) that are applicable to you.

If a box is not checked, you are agreeing that the applicable Section does not, and will not, apply to you.

1. ☐ **Employee Benefit Plans Subject to ERISA or the Code**. We, or the entity on whose behalf we are acting, are an "employee benefit plan" within the meaning of Section 3(3) of ERISA that is subject to the fiduciary responsibility provisions of Title I of ERISA or a "plan" within the meaning of Section 4975(e)(1) of the Code that is subject to Section 4975 of the Code.

   Examples: (i) tax qualified retirement plans such as pension, profit sharing and section 401(k) plans, (ii) welfare benefit plans such as accident, life and medical plans, (iii) individual retirement accounts or "IRAs" and "Keogh" plans and (iv) certain tax-qualified educational and savings trusts.

2. ☐ **Entity Holding Plan Assets**. We, or the entity on whose behalf we are acting, are an entity or fund whose underlying assets include "plan assets" by reason of one or more Benefit Plan Investor's investment in such entity.

   Examples: (i) an insurance company separate account, (ii) a bank collective investment fund and (iii) a hedge fund or other private investment vehicle where 25% or more of the total value of any class of its equity is held by Benefit Plan Investors as calculated under the Plan Asset Regulation.

If you check Box 2, please indicate the maximum percentage of the entity or fund that will constitute "plan assets" for purposes of Title I of ERISA or Section 4975 of the Code: _____%.

AN ENTITY OR FUND THAT CANNOT PROVIDE THE FOREGOING PERCENTAGE HEREBY ACKNOWLEDGES THAT FOR PURPOSES OF DETERMINING WHETHER BENEFIT PLAN INVESTORS OWN LESS THAN 25% OF THE VALUE OF THE PURCHASED SECURITIES ISSUED BY THE ISSUER, 100% OF THE ASSETS OF THE ENTITY OR FUND WILL BE TREATED AS "PLAN ASSETS".

ERISA and the regulations promulgated thereunder are technical. Accordingly, if you have any question regarding whether you may be an entity described in this Section 2, you should consult with your counsel.

3. ☐ **Insurance Company General Account**. We, or the entity on whose behalf we are acting, are an insurance company purchasing the Purchased Securities with funds from our or their general account (*i.e.*, the insurance company's corporate investment portfolio), whose assets, in whole or in part, constitute "plan assets" under Section 401(a) of ERISA.

If you check Box 3, please indicate the maximum percentage of the insurance company general account that will constitute "plan assets" under Section 401(a) of ERISA for purposes of conducting the 25% test under the Plan Asset Regulations: ____%. IF YOU DO NOT INCLUDE ANY PERCENTAGE IN THE BLANK SPACE, YOU WILL BE COUNTED AS IF YOU FILLED IN 100% IN THE BLANK SPACE.

4. ☐ **None of Sections (1) Through (3) Above Apply**. We, or the entity on whose behalf we are acting, are a person that does not fall into any of the categories described in Sections (1) through (3) above. If, after the date hereof, any of the categories described in Sections (1) through (3) above would apply, we will promptly notify the Issuer and the Collateral Trustee of such change.

5. **No Prohibited Transaction**. If we checked any of the boxes in Sections (1) through (3) above, we represent, warrant and agree that our acquisition, holding and disposition of the Purchased Securities do not and will not constitute or result in a non-exempt prohibited transaction under Section 406 of ERISA or Section 4975 of the Code.

6. **Not Subject to Similar Law and No Violation of Other Plan Law**. If we are a governmental, church, non-U.S. or other plan, we represent, warrant and agree that (a) we are not subject to any federal, state, local, non-U.S. or other law or regulation that could cause the underlying assets of the Issuer to be treated as assets of the investor in any Note (or interest therein) by virtue of its interest and thereby subject the Issuer or the Manager (or other persons responsible for the investment and operation of the Issuer's assets) to laws or regulations that are substantially similar to Title I of ERISA or Section 4975 of the Code, and (b) our acquisition, holding and disposition of the Purchased Securities do not and will not constitute or result in a

non-exempt violation of any law or regulation that is substantially similar to Title I of ERISA or Section 4975 of the Code.

7. ☐ **Controlling Person**. We are, or we are acting on behalf of : (i) any person that has discretionary authority or control with respect to the assets of the Issuer, (ii) any person who provides investment advice for a fee (direct or indirect) with respect to such assets or (iii) any "affiliate" of any of the above persons. "Affiliate" shall have the meaning set forth in the Plan Asset Regulations. Any of the persons described in the first sentence of this Section 7 is referred to in this Certificate as a "Controlling Person".

Note: We understand that, for purposes of determining whether of the 25% Limitation is violated with respect to the Class I Subordinated Notes and of the Class II Subordinated Notes, the value of any Class I Subordinated Notes or Class II Subordinated Notes, as applicable, held by Controlling Persons (other than Benefit Plan Investors) are required to be disregarded.

8. **Compelled Disposition**. We acknowledge and agree that:

(i) if any representation that we made hereunder is subsequently shown to be false or misleading or our beneficial ownership otherwise causes a violation of the 25% Limitation, the Issuer shall, in its sole discretion, promptly after such discovery or upon notice from the Collateral Trustee (if a Trust Officer of the Collateral Trustee obtains actual knowledge), if it makes the discovery (who agrees to notify the Issuer of such discovery, if any), send notice to us demanding that we transfer all or any portion of our Purchased Securities or interests therein to a person that is not a Non-Permitted ERISA Holder within ten (10) calendar days after the date of such notice;

(ii) if we fail to transfer our Purchased Securities as required in the preceding paragraph, the Issuer shall have the right, without further notice to us, to sell our Purchased Securities or our interest in the Purchased Securities to a purchaser selected by the Issuer that is not a Non-Permitted ERISA Holder (and that is otherwise eligible to hold such Purchased Securities or an interest therein) on such terms as the Issuer may choose;

(iii) the Issuer may select the purchaser by soliciting one or more bids from one or more brokers or other market professionals that regularly deal in securities similar to the Purchased Securities and selling such securities to the highest such bidder. However, the Issuer may select a purchaser by any other means determined by it in its sole discretion;

(iv) by our acceptance of an interest in the Purchased Securities we agree to cooperate with the Issuer and the Collateral Trustee to effect such transfers;

(v) the proceeds of such sale, net of any commissions, expenses and taxes due in connection with such sale shall be remitted to us; and

(vi) the terms and conditions of any sale under this subsection shall be determined in the sole discretion of the Issuer, and the Issuer shall not be liable to us as a result of any such sale or the exercise of such discretion.

9. **Required Notification and Agreement**. We hereby agree that we (a) will inform the Collateral Trustee of any proposed transfer by us of all or a specified portion of the Purchased Securities and (b) will not initiate any such transfer if the transferee is, or is acting on behalf of, a Benefit Plan Investor or a Controlling Person.

10. **Continuing Representation; Reliance**. We acknowledge and agree that the representations, warranties and agreements contained in this Certificate shall be deemed made on each day from the date we make such representations, warranties and agreements through and including the date on which we dispose of our interests in the Purchased Securities. We understand and agree that the information supplied in this Certificate will be used and relied upon by the Issuer and the Collateral Trustee to determine that the 25% Limitation is not violated with respect to each of the Class I Subordinated Notes and the Class II Subordinated Notes upon any subsequent transfer of Subordinated Notes in accordance with the Indenture.

11. **Further Acknowledgement and Agreement**. We acknowledge and agree that (i) all of the representations, warranties, agreements and assurances contained in this Certificate are for the benefit of the Issuer, the Collateral Trustee, the Initial Purchaser and the Manager as third party beneficiaries hereof, (ii) copies of this Certificate and any information contained herein may be provided to the Issuer, the Collateral Trustee, the Initial Purchaser, the Manager, affiliates of any of the foregoing parties and to each of the foregoing parties' respective counsel for purposes of making the determinations described above and (iii) any acquisition or transfer of the Purchased Securities by us that is not in accordance with the provisions of this Certificate shall be null and void from the beginning, and of no legal effect.

12. **Future Transfer Requirements**.

Transferee Letter and its Delivery. We acknowledge and agree that we may not transfer any Certificated Notes to any person unless the Collateral Trustee has received a certificate substantially in the form of this Certificate. Any attempt to transfer in violation of this section will be null and void from the beginning, and of no legal effect.

Note: Unless you are notified otherwise, the name and address of the Collateral Trustee is as follows:

The Bank of New York Mellon Trust Company, National Association
601 Travis Street, 16th Floor
Houston, TX 77002

ANNEX C

PRELIMINARY INVESTMENT QUESTIONNAIRE

As an initial matter, to be qualified to invest in the Purchased Securities, the Investor must be an "accredited investor" (as that term is defined in Rule 501(a) of Regulation D promulgated under Section 4(a)(2) of the Securities Act of 1933, as amended (the "**Securities Act**")).

The Issuer will rely upon the accuracy and completeness of the information provided in this Questionnaire and the subsequent investor representation letter in establishing that the issuance of the Purchased Securities is exempt from the registration requirements of the Securities Act and that the Issuer itself is exempt from registration as an investment company under the Investment Company Act.

ACCORDINGLY, THE INVESTOR IS OBLIGATED TO READ THIS QUESTIONNAIRE CAREFULLY AND TO ANSWER THE ITEMS CONTAINED HEREIN COMPLETELY AND ACCURATELY.

Unless instructed otherwise, please answer each question on the Questionnaire. If the answer to a particular question is "None" or "Not Applicable," please state so. If the Questionnaire does not provide sufficient space to answer a question, please attach a separate schedule to your executed Questionnaire that indicates which question is being answered thereon.

SECURITIES ACT STATUS

Please check the appropriate representation that applies to you.

I am an Accredited Investor (as defined in Rule 501(a) of Regulation D promulgated under the Securities Act) because I certify that (check all appropriate descriptions that apply):

(a) _____ I am a bank as defined in section 3(a)(2) of the Act, or any savings and loan association or other institution as defined in section 3(a)(5)(A) of the Act whether acting in its individual or fiduciary capacity; any broker or dealer registered pursuant to section 15 of the Securities Exchange Act of 1934; any insurance company as defined in section 2(a)(13) of the Act; any investment company registered under the Investment Company Act of 1940 or a business development company as defined in section 2(a)(48) of that Act; any Small Business Investment Company licensed by the U.S. Small Business Administration under section 301(c) or (d) of the Small Business Investment Act of 1958; any plan established and maintained by a state, its political subdivisions, or any agency or instrumentality of a state or its political subdivisions, for the benefit of its employees, if such plan has total assets in excess of $5,000,000; any employee benefit plan within the meaning of the Employee Retirement Income Security Act of 1974 if the investment decision is made by a plan fiduciary, as defined in section 3(21) of such act, which is either a bank, savings and loan association, insurance company, or registered investment adviser, or if the employee benefit plan has total assets in excess of $5,000,000 or, if a self-directed plan, with investment decisions made solely by persons that are accredited investors;

(b) _____ I am a private business development company as defined in section 202(a)(22) of the Investment Advisers Act of 1940;

(c) _____ I am an organization described in section 501(c)(3) of the Internal Revenue Code, corporation, Massachusetts or similar business trust, or partnership, not formed for the specific purpose of acquiring the securities offered, with total assets in excess of $5,000,000;

(d) _____ I am a director, executive officer, or general partner of the issuer of the securities being offered or sold, or any director, executive officer, or general partner of a general partner of that issuer;

(e) _____ I am a natural person whose individual net worth, or joint net worth with my spouse, exceeds $1,000,000. For purposes of this question, "net worth" means the excess of total assets at fair market value (including personal and real property, but excluding the estimated fair market value of a person's primary home) over total liabilities. Total liabilities excludes any mortgage on the primary home in an amount of up to the home's estimated fair market value as long as the mortgage was incurred more than 60 days before the Securities are purchased, but includes (i) any mortgage amount in excess of the home's fair market value and (ii) any mortgage amount that was borrowed during the 60-day period before the closing date for the sale of the Subordinated Notes for the purpose of investing in the Subordinated Notes.

(f) _____ I am a natural person who (A) had individual income exceeding $200,000 in each of the last two calendar years and I have a reasonable expectation of reaching the same income level in the current calendar year. For purposes of this question, "income" means annual adjusted gross income, as reported for federal income tax purposes, plus (i) the amount of any tax-exempt interest income received; (ii) the amount of losses claimed as a limited partner in a limited partnership; (iii) any deduction claimed for depletion; (iv) amounts contributed to an IRA or Keogh retirement plan; (v) alimony paid; and (vi) any amount by which income from long-term capital gains has been reduced in arriving at adjusted gross income pursuant to the provisions of

Section 1202 of the Internal Revenue Code of 1986, as amended or (B) had joint income with my spouse exceeding $300,000 in each of the last two calendar years and I have a reasonable expectation of reaching the same income level in the current calendar year, as defined above.

(g) _____ I am a trust, with total assets in excess of $5,000,000, not formed for the specific purpose of acquiring the securities offered, whose purchase is directed by a sophisticated person as described in § 230.506(b)(2)(ii).